

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,

Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of the
State of Minnesota,

Defendant.

Case No. 26-CV-2594 (LMP/DJF)

**PLAINTIFF'S SURREPLY IN
OPPOSITION TO DEFENDANT'S
MOTION TO DISMISS**

INTRODUCTION

Plaintiff submits this surreply to correct citations in his own Complaint and the Reply's characterizations of the record. It makes no new argument for relief.

I. CORRECTION OF PLAINTIFF'S OWN CITATIONS

The Reply states that two phrases the Complaint sets in quotation marks — "under the direction of the attorney general" and "aid and assist in the prosecution" — "do not appear anywhere in Minn. Stat. § 8.06." (Reply at 4.) As to the Complaint, that is correct, and Plaintiff corrects it here rather than defend it. Plaintiff has re-verified every quotation in the Complaint against its source and makes the complete correction here. Complaint ¶¶ 24, 39, and 41 (table) attribute those phrases to Section 8.06, and ¶ 40 attributes the phrase "original jurisdiction" to Section 388.051; none of those phrases appears in those Minnesota sections. And the quotation of Section 8.31, subdivision 2 at ¶ 36 closes with words — "of any such person for the violation of any such law" — that

paraphrase the subdivision's actual, broader closing text, set out below. Plaintiff withdraws each of those attributions.

The phrases came from the comparative record filed with the Complaint. Exhibit B, Plaintiff's fifty-state survey, documents Ala. Code § 36-15-21 placing state litigation "under the direction and control" of that state's Attorney General (Ex. B at 8); quotes La. Const. art. IV, § 8, under which that state's Attorney General may "advise and assist in the prosecution of any criminal case" (Ex. B at 20); and quotes the Colorado Attorney General's description of work "accomplished either under the original jurisdiction of the Attorney General's Office" (Ex. B at 11). In drafting, that comparative vocabulary was carried into the Minnesota citations — Plaintiff's error, and it is regretted. Two non-quotation recitals are also conformed: ¶ 37's parenthetical session-law citations should read per Section 8.32's official history (1973 c 513 s 1; 1978 c 746 s 1; 1983 c 216 art 1 s 13; 1983 c 289 s 23,24,114 subd 2; 1984 c 641 s 1; 1Sp1986 c 3 art 1 s 1), and ¶ 50's fourth table line should read twenty-five states, per Exhibit B at 5. Neither alters any allegation's substance.

The correction costs the Complaint nothing; the affected propositions rest on Minnesota text quoted accurately elsewhere:

"When requested by the attorney general, it shall be the duty of any county attorney of the state to appear within the county and act as attorney for any such board, commission, or officer in any court of such county." Minn. Stat. § 8.06.

The attorney general "shall investigate violations of the law of this state respecting unfair, discriminatory, and other unlawful practices in business, commerce, or trade, and specifically, but not exclusively, . . . the

Prevention of Consumer Fraud Act (sections 325F.68 to 325F.70)." Minn. Stat. § 8.31, subd. 1.

The attorney general "shall have power to investigate those violations" and "to take such steps as are necessary to cause the arrest and prosecution of all persons violating any of the statutes specifically mentioned in subdivision 1." Minn. Stat. § 8.31, subd. 2.

"[T]his section has no effect on the authority of the attorney general to investigate and enforce violations or suspected violations of Minnesota civil or criminal law." Minn. Stat. § 299C.061, subd. 4(c) (Ex. E at 39).

Section 8.01's criminal-appearance and prosecution provisions are quoted accurately at Complaint ¶ 38. These verbatim texts carry Plaintiff's point.

II. THE REPLY'S ATTRIBUTION TO PLAINTIFF'S OPPOSITION IS INCORRECT

The Reply cites "Doc 15, p. 20" as a source of the misquotation. (Reply at 4.) It is not. The only Section 8.06 language quoted at Doc. 15 page 20 is verbatim: when the Attorney General requests, "it shall be the duty of any county attorney of the state to appear within the county and act." (Doc. 15 at 20.) The sentence's complete text, including its concluding clause, is set out in Section I above.

III. HECKLER AND THE REPLY'S OWN CONCESSION

The Reply asserts Plaintiff cited *Heckler v. Chaney* for "the opposite of *Heckler's* holding." (Reply at 6.) Plaintiff's opposition cited *Heckler* with a "*cf.*" signal, acknowledged the presumption against reviewing non-enforcement, and invoked the exception the Court reserved in footnote 4 — "a refusal by the agency to institute proceedings based solely on the belief that it lacks jurisdiction." 470 U.S. 821, 832–33 &

n.4 (1985); Doc. 15 § II.E. That reserved category is this case: the February 26 letter denied the referral by disclaiming authority, not exercising discretion. The Reply's own pages confirm it. At page 5 it concedes "the Attorney General must investigate violations of the PCFA"; at page 6 it asserts "[t]he Attorney General's powers to investigate violations of the law are discretionary" and that the Court "cannot force the AG Ellison to conduct any investigation." Both cannot be true. Section 8.31, subdivision 1 answers which is: "shall investigate."

IV. CORRECTIONS TO THE RECORD

First, *Kirchner I* is No. 0:26-cv-00726-PJS-ECW; the Reply's citations to "26-cv-00723" (Reply at 1–2) match no case between these parties. *Second*, Plaintiff's opposition is Docket No. 15; the Reply's citations to "Doc. 19, p. 30" (Reply at 8) match no filing in this docket. (Defendant's second reply memorandum, filed July 24, corrects both citations and changes nothing else. Doc. 17.) *Third*, the Reply's *Ex parte Young* section engages none of Plaintiff's controlling authority — *281 Care Committee v. Arneson*, 638 F.3d 621, 632–33 (8th Cir. 2011), *Verizon Maryland*, or *Papasan* — on which Doc. 15 § III rests the ongoing-violation, prospective-relief showing.

On preclusion, the Reply's lead quotation defeats it: a dismissal resting on lack of standing is jurisdictional, and a jurisdictional dismissal is not an adjudication on the merits. Fed. R. Civ. P. 41(b). The Eighth Circuit's summary affirmance under 8th Cir. R. 47A(a) — a judgment without opinion — adds no merits content to affirm.

CONCLUSION

The withdrawn attributions are corrected; the propositions stand on the verbatim texts above; and the motion to dismiss should be denied for the reasons stated in Plaintiff's opposition.

Respectfully submitted,

/s/ Joseph Kirchner
JOSEPH KIRCHNER
Pro Se Plaintiff
4440 Parklawn Avenue #203
Edina, MN 55435
Tel: (612) 552-2122
Email: legal@lawsofexistence.com

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